POINT REYES LIGHT

NEWS

Marin’s Flock data breached

by **Sage Rios Mace**
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For years, Tara Evans made the daily journey from Stinson Beach to bring her children to and from school over the hill, without knowing that automated license-plate readers installed by the Marin County Sheriff’s Office were collecting data on her and others’ routine movements. Worse, the office was sharing the data with other state and federal agencies, in violation of California law.

When Ms. Evans and two other Marin residents realized what was happening through a public records request, the trio filed suit.

Brought by attorneys with the American Civil Liberties Union of Northern California and the Electronic Frontier Foundation, the 2021 **lawsuit** claimed the M.C.S.O. had shared data with at least 424 out-of-state agencies and 18 federal agencies through its A.L.P.R. system, then provided by Vigilant Solutions, a company owned by Motorola.

“As someone who circled the county every day, multiple times a day, it just really struck me as a complete violation of our human rights,” Ms. Evans said. “It was shocking to me that this was happening, and nobody knew about it.”

The plaintiffs reached a landmark **settlement** in 2022. Their agreement with M.C.S.O mandated that the office adhere to S.B. 34, the 2015 law that prohibits law enforcement from sharing collected license plate data with out-of-state or federal agencies, and S.B. 54, the California Values Act, which outlawed data sharing for the purpose of immigration enforcement in 2018.

As part of the settlement, M.C.S.O. drafted an A.L.P.R. policy that requires it to run yearly audits of network search activity to flag any violations or misuse. In late 2023, the office replaced its Vigilant Solutions system, which was no longer serviceable by the manufacturer, with cameras from Flock Safety, an Atlanta-based company with more than 120,000 cameras across the country.

The *Light* reviewed more than a dozen Flock network audits, obtained by a public records request, and discovered extensive searches of Marin's data by out-of-state and federal agencies during nine weeks in 2024.

The revelation comes amid nationwide debates over whether the risks of surveillance technology outweigh its benefits—and as Marin supervisors weigh a proposal to adopt a program that would utilize Flock and other data in a real-time dashboard shared among Marin's law enforcement agencies.

This week, the sheriff's office said a notification of the unauthorized data sharing was relayed through its chain of command. The breach was never disclosed to the plaintiffs, the public, or Marin's Inspector General, appointed in May. Spokesman Miguel Almaguer said the office reached out to Flock within weeks of learning about the breach and is awaiting an explanation of how the access occurred.

"The Marin County Sheriff's Office takes the privacy of our community and the responsible use of Flock technology extremely seriously," he wrote. "Before Flock was implemented in Marin County, the M.C.S.O. took deliberate steps to disable nationwide data-access capabilities and ensure our system operated within strict privacy safeguards."

Flock did not respond to the *Light*'s queries about what allowed for the unauthorized searches.

In Marin and farther afield, law agencies are cutting ties with Flock, under public pressure to protect citizens' Fourth Amendment rights. Adding to public concern is the Trump administration's mass deportation campaign, which utilized Flock surveillance data in upwards of **4,000 immigration enforcement cases** from June 2024 to May 2025 alone.

Today, the M.C.S.O. leases 31 Flock surveillance cameras, though 10 are not functioning due to vandalism. The cameras are placed throughout unincorporated Marin at sites that shift depending on crime.

Citizen-run websites that map Flock locations show cameras at other locations in West Marin, including on lands managed by state and federal park agencies. But with periodic location changes, vandalism, and decommissioning, those maps are not always reliable sources.

Joshua Winchell, a spokesperson for the park service, said Golden Gate National Recreation Area began a pilot program for A.L.P.R. cameras in high-visitation areas in April. The contract expires this month and will not be renewed due to community feedback, he said.

Flock cameras capture data from passing cars that is sorted by artificial intelligence and retained for 30 days before it is destroyed. If a camera captures a car that is flagged by an active "hotlist"—comprised of vehicles suspected to be involved in a crime or reported as stolen—a real-time alert is sent out to deputies.

According to the sheriff's office, its cameras have **detected 503,820 cars** in the past 30 days, and 1,385 cars were flagged by the hotlist.

Marin's Flock data is accessible to 19 agencies with sharing agreements. Locally, those include the Tiburon, San Rafael, Mill Valley, and Novato Police Departments, and the Central Marin Police Authority. Outside agencies include the San Francisco, Palo Alto, and Tehachapi Police Departments, among others.

Network audit logs, which can be downloaded in 31-day increments by the sheriff's office's A.L.P.R. program manager, show every time a law enforcement agency

searched Marin's database. Organizational audit logs only show searches by M.C.S.O. Both types of logs include key details like the reason behind the search, the number of networks queried, the search time, and the name of the agency and the police officer who initiated the search.

Last year, citing safety concerns, Flock adopted a policy to shield officer names, so deputy names are no longer included.

Network audit logs from 2025 and 2026 obtained by the *Light* show M.C.S.O. participating in legal in-state sharing in those years. But three network audits—from October, November, and December 2024—revealed data sharing with out-of-state and federal agencies.

In November 2024, out-of-state agencies conducted 254,131 searches of M.C.S.O. data, amounting to 48 percent of the total searches made that month.

The greatest number came from Texas law enforcement agencies. Over 250 agencies ran a total of 37,471 searches of Marin's data in November, followed by Georgia, whose 236 agencies conducted 31,770 searches.

Federal agencies, such as the Nashville and Louisville field divisions of the Bureau of Alcohol, Tobacco, Firearms and Explosives, executed 399 searches of Marin's data.

Though Flock does not offer contracts to the Department of Homeland Security or Immigrations and Customs Enforcement, in recent years journalists across the country have documented searches by law enforcement agencies made on behalf of ICE.

The *Light* could not determine if any of the unauthorized searches of Marin's data were made to assist the D.H.S. or ICE, since the search reasons in the 2024 network audits were categorically redacted.

The newspaper is still waiting to receive network audits from January, February, and March 2024; for 10 months of 2025; and from April 2026 onward.

Breaches of Flock data have happened elsewhere in California, and Flock has acknowledged that it's difficult to determine the cause. Between February and March last year, out-of-state agencies accessed the **Ventura County Sheriff's Office's data** more than 364,000 times without authorization; 299 of those searches were made for reasons tied to immigration enforcement. In response, Flock said that other law enforcement agencies had been impacted but could not determine a specific cause due to "limitations in technical logging."

In February, the Mountain View City Council unanimously **voted to terminate** the city's Flock contract after an internal audit revealed that out-of-state and federal agencies had accessed its data between August and November 2024.

Flock urges its clients to run regular audits and check them for compliance. "It is recommended that you run an organizational audit at least once a month and check for any irregularities in the searches done from within your agency," the company's 2023 user guide states. "You can also run a network audit to see who has searched your network from any agency in the Flock system."

Saira Hussain, a senior attorney from the Electronic Frontier Foundation who represented the Marin residents in their 2021 lawsuit, said access to search reasons is critical to fostering transparency and determining whether searches were used to assist immigration enforcement.

Nick Hidalgo, an attorney with the A.C.L.U. who focuses on democracy, surveillance, and technology, said that although California has protections in place, many law enforcement departments have flouted the 2015 law prohibiting data sharing. And if Marin provided access since reaching its settlement, it is violating not only the law, but also its settlement agreement, he said.

Across the country, media organizations, activists, and other members of the public have submitted rafts of public records requests to understand Flock activity in their communities. In a mass email to clients that addressed growing claims of wrongful data sharing, Flock's chief executive officer, Garrett Langley, said the company has never been hacked, shared its data, or sold its clients' data.

“Let’s call it what it is: Flock, and the law enforcement agencies we partner with, are under coordinated attack,” Mr. Langley wrote. “They’re trying to turn a public records process into a weapon against you and against us. Make no mistake, we’re fighting this fight for you, and, I hope, with you.”

For Ms. Evans, the revelation of outside data sharing by the M.C.S.O. underscores the purpose of the 2021 litigation: to foster accountability and mitigate harm.

The Marin settlement set a precedent for enforceable compliance, allowing the A.C.L.U. and the Electronic Frontier Foundation to send out **over 70 letters** demanding compliance with S.B. 34 and S.B. 54 from other California law agencies. Since then, some of those agencies have complied, while others have not, Ms. Hussain said.

More broadly, advocates warn that centralized license-plate databases reveal information about people’s lives and movements, and those datapoints can be used to target vulnerable individuals and communities.

“Through that database, law enforcement can identify patterns of where people live and work, where they drop their kids off to school, who they associate with, or somebody that may be seeking sensitive services—whether that’s worshiping in a particular house of worship, seeking a reproductive service, or an immigration consult,” Ms. Hussain said. “They’re able to conduct these searches without any sort of boundaries, for the most part. There’s no warrant.”

In the past year alone, the Institute for Justice, a nonprofit civil liberties law firm, has documented more than **200 cases of abuse** of Flock data. The cases ranged from romantic stalking and wrongful stops and detentions to a San Jose deputy who allegedly used the data to track a domestic violence victim on behalf of her abuser.

Other high-profile cases include the Johnson County Sheriff’s Office deputy in Texas who queried **over 83,000 Flock cameras** across the country to track a woman who had self-administered an abortion. Johnson County conducted 22 searches of the M.C.S.O.’s Flock data in November 2024.

Law enforcement officials argue that the technology helps solve and prevent crime. According to Mr. Almaguer, Flock data helped lead to 71 arrests in 2025. It also provided 186 criminal leads and helped locate 12 missing people and six people experiencing a mental health crisis that year.

When the office presented its proposal to use Flock to the Board of Supervisors in November 2023, the meeting was attended by both Flock detractors and supporters, including individuals whose homeowner associations already had their own cameras.

Sheriff Jamie Scardina and a colleague emphasized that data collected by the cameras would be shared only with local and state law enforcement agencies, in compliance with the law. They underscored how the cameras could help deter retail and vehicle theft, and they explained that the cameras would be moved on an ongoing basis.

In attendance was Tammy Edmonson, a founding member of Mill Valley Force for Racial Equity and Empowerment who studies racialized policing and pretext stops in Marin. At the meeting, she cautioned against handing over a new surveillance tool to the sheriff's office, which is **over nine times** more likely to stop Black people than white people.

"Law enforcement has their prerogative to catch the bad guys for the purpose of public safety, but then the question emerges of at what cost, and how effective is this technology?" Ms. Edmonson told the *Light*.

Others have become aware of Flock cameras on roads since the county approved the contract.

Will Mitchell, a former member of the Stinson Beach Fire Protection District board, is not against public safety. "But these cameras showed up in West Marin with zero notice, zero public comment, and zero clarity on who's actually running them," he said. "In a place where you can't get a cell signal around parts of the lagoon, people want to see a flock of birds, not an A.I. camera tracking your movements every day."

Ms. Edmonson has analyzed Marin's Flock organizational audits from 2024, obtained through a public records request. In the logs she received, many of the search reasons

were omitted or improperly redacted.

In recent months, Ms. Edmonson has brought her findings to the Marin County Civilian Oversight Commission, established last year in response to A.B. 1185, a 2021 law that authorized California counties to create oversight bodies to monitor law enforcement. The commission now has a subcommittee devoted to surveillance technology.

The group is also evaluating the risks and benefits of Peregrine Platform, a real-time dashboard that brings various law enforcement data together. Back in May, the M.C.S.O. proposed a three-year, $1.5 million contract for the service, but supervisors decided to postpone their vote.

At a Sept. 14 meeting of the civilian oversight commission, members of the subcommittee said they were reviewing media reports and had an informative conversation with the sheriff's office. They are planning to bring in experts for presentations on how Flock should or should not be utilized.

Marin also has a new inspector general overseeing the sheriff's office, another position authorized by A.B. 1185. John Alden, whose job is to oversee the complaint process, support the oversight commission, and conduct his own independent analyses—said the subcommittee will produce recommendations by the end of the year. He had not seen any network audits before the *Light* showed him one.

In a conversation this week, Mr. Alden said the sheriff's office had not informed him of the unauthorized data sharing in 2024, and there was no rule requiring it to do so.

"I have heard about this happening in other jurisdictions, and it calls into question whether Flock is a reliable partner for this kind of technology," he said. "For government agencies like Marin County, whose information was accessed without Marin County authorization, I don't know that there is anything that any one of us can do after it's happened."

In August, Marin adopted a new data policy governing digital information and implementing protections to prevent misuse in ways that could harm residents,

especially those from marginalized communities. The policy requires a review of any data shared between county departments, or by county departments to external entities, by the county's chief information security officer, who is tasked with classifying the data as public, confidential, or restricted.

Ms. Edmonson does not think the policy goes far enough. "Its entire focus is on what do we do with data once we have it," she said. "It doesn't address, should we be collecting this data, should we be adopting this technology?"

Meanwhile, Ms. Evans said she still sees Flock cameras on her daily commute, including in areas commonly frequented by undocumented workers. She hopes the M.C.S.O. will be held accountable for its practices.

"When the sheriff and Board of Supervisors chose to contract with Flock, set it up, and begin surveilling the community's movement patterns, they became responsible for protecting us from having our personal information shared with federal agencies and others outside of our state," she said.

She would like to see the inspector general and oversight commission step-in to perform monthly audits. "This breach is arguably a first test of oversight," she said. "Have they opened a review, have they been informed, and are they doing the work?"

Around the country, law enforcement agencies and cities have been cancelling or declining to renew their contracts with Flock. In August, the Central Marin Police Authority—which services San Anselmo, Corte Madera, and Larkspur—became one of the more than 150 law enforcement agencies to do so.

Corte Madera councilman Eli Beckman announced the decision.

"These license plate readers have been helpful to solving crime, but we ultimately want to be responsive to concerns in the community about how this data could be shared and accessed by agencies across the country that might not share our values and commitment to privacy," he said.

Those concerns now extend to what comes next for Marin’s broader surveillance infrastructure.

Ms. Evans hopes that supervisors hold off on a vote on the Peregrine program. “We know now that the sheriff’s office is unable to keep Vigilant and Flock system data inside California, and they still can’t tell us how out-of-state access happened,” she said. “Yet tomorrow they want the Board of Supervisors to pull every agency’s data into a single, larger system with another private company. Marin County Supervisors should not reward a broken promise with a bigger database.”

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